

Smt. Deepika D vs Sri. Yeshwanth Kumar B M on 3 October, 2023

Author: S.G.Pandit

Bench: S.G.Pandit

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NC: 2023:KHC:35595
CP No. 317 of 2022

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 3RD DAY OF OCTOBER, 2023

BEFORE

THE HON'BLE MR JUSTICE S.G.PANDIT

CIVIL PETITION NO. 317 OF 2022

BETWEEN:

SMT. DEEPIKA D
AGED ABOUT 22 YEARS
W/O SRI YESHWANT KUMAR B M
D/O SRI DEVAIAH
NO.404, CHIKKAHALLI VILLAGE
T NARAISPURA MAIN ROAD
VAJAMANGALA POST
VARUNA HOBLI
MYSURU-570010.

...PETITIONER

(BY SRI. ADARSH GANGAL, ADV.)

AND:

Digitally signed by
A K CHANDRIKA
Location: High

Court of Karnataka

SRI. YESHWANTH KUMAR B M
AGED ABOUT 32 YEARS

S/O SRI MADIAH B C
R/AT NO.1073, 7TH CROSS
VALAGEREHALLI
KENGERRI UPANAGAR
KSTB, BENGALURU- 560060.

...RESPONDENT

(BY SRI. P MAHADEVASWAMY, ADV.)

THIS PETITION IS FILED UNDER SECTION 24 OF CPC,
PRAYING TO TRANSFER THE MC NO. 3448/2021 PENDING IN THE
COURT OF PRINCIPAL FAMILY JUDGE, BENGALURU TO THE FAMILY
COURT AT MYSURU AND GRANT SUCH OTHER AND FURTHER
RELIEFS AS ARE JUST.

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THIS PETITION, COMING ON FOR ADMISSION, THIS DAY, THE
COURT MADE THE FOLLOWING:

ORDER

Heard the learned counsel Sri.Adarsh Gangal for petitioner/wife and learned counsel Sri.P.Mahadevaswamy for respondent/husband. Perused the civil petition papers.

2. It is submitted that marriage of the petitioner and respondent was solemnized on 25.11.2020 and from the marriage, they have no issues. It is submitted that petitioner/wife is not working and she is residing with her parents at Mysuru.

3. The respondent/husband initiated proceedings in M.C.No.3448/2021 on the file of the Principal Family Judge at Bengaluru under Section 13(1)(ia) and (ib) of the Hindu Marriage Act, 1955 seeking dissolution of marriage. It is submitted that it would be difficult for the petitioner/wife to travel from Mysuru to Bengaluru, since she has no income of her own.

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4. Learned counsel Sri.P.Mahadevaswamy for respondent/husband on instructions fairly submits that respondent/husband has no objection to transfer the petition from Bengaluru to Mysuru.

5. Taking note of the above submission, the following:

ORDER

1) Civil Petition filed under Section 24 of CPC is allowed.

2) The proceedings in M.C.No.3448/2021 pending on the file of the Principal Judge Family Court at Bengaluru is directed to be transferred to the Family Court at Mysuru for further consideration in accordance with law.

SD/-

JUDGE NC CT:bms